

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, JULY 10, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**TROY ANDERSON vs. WARDEN OF CALIFORNIA MEDICAL FACILITY
Case No. CU23-02408**

CUEVA'S Demurrer

TENTATIVE RULING

Defendant D. CUEVA ("CUEVA," erroneously sued as WARDEN OF CALIFORNIA MEDICAL FACILITY) demurs to Plaintiff TROY ANDERSON's complaint for negligence and intentional tort.

Legal Standard on Demurrer. "The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Analysis. Plaintiff's complaint does not state a cause of action against CUEVA. The complaint states that Plaintiff brought some of his concerns to CUEVA on April 22, 2022 and CUEVA agreed with Plaintiff that Plaintiff having to wear a control jumpsuit during

emergency medical transports was unreasonable; CUEVA then directed his subordinates to enforce his orders. The complaint also states that CUEVA would approve Plaintiff's phone calls to a legal help center but another defendant, B. EBERT, would interfere and delay or deny the calls. There is no cognizable action stated against CUEVA in these allegations.

Leave to Amend. Leave to amend is proper where identified defects are amenable to cure. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.) It is the pleading party's burden to show the trial court that a reasonable possibility exists that amendment can cure identified defects in that party's pleading. (*Murphy v. Twitter, Inc.* (2018) 60 Cal.App.5th 12, 42.)

Plaintiff filed opposition to the demurrer on April 17, 2026. The opposition papers include a proposed amended complaint. However, the proposed amended complaint is substantially a restatement of the operative complaint and so does not demonstrate a reasonable possibility that amendment would cure the lack of a cognizable action against CUEVA in the operative complaint. Where the proposed amended complaint adds new material it adds only legal argument and allegations of general inequality in the prison system that do not implicate CUEVA specifically.

Conclusion. CUEVA's demurrer is sustained without leave to amend.

**JEFF OSUNA; ET AL. vs. RIVER DELTA UNIFIED SCHOOL DISTRICT; ET AL.
Case No. CU24-09522**

Motion to Compel Depositions

TENTATIVE RULING

Plaintiffs' motion to compel depositions is continued, on the court's own motion, to July 14, 2026 in Department 7 at 9:00 a.m., to be heard concurrently with Defendants' motion for protective order.

**CARISSA TIMBALL vs. CITY OF BENICIA; ET AL.
Case No. CU25-05707**

CALTRANS's Demurrer to Plaintiff's Complaint

TENTATIVE RULING

Defendant STATE OF CALIFORNIA BY AND THROUGH THE CALIFORNIA DEPARTMENT OF TRANSPORTATION ("CALTRANS") demurs to Plaintiff CARISSA TIMBALL's first amended complaint ("1AC") alleging a dangerous condition of public property.

Legal Standard on Demurrer. “The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].) The court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.) The court also assumes the truth of facts appearing in exhibits attached to the complaint. (*Mead v. Sanwa Bank California* (1998) 61 Cal.App.4th 561, 567-568.) If the facts appearing in attached exhibits expressly contradict allegations of the complaint, the facts in the exhibit take precedence. (*Ibid.*)

Dangerous Condition of Public Property. Government Code section 835 generally provides that a public entity is liable for injury caused by a dangerous condition of its property if a plaintiff proves that the property was in a dangerous condition at the time of injury and either that (a) the wrongful or negligent act(s) of the public entity’s employee(s) within the scope of their employment created the condition or (b) the public entity had actual or constructive notice of the dangerous condition sufficiently in advance to have protected against it. (*Metcalf v. County of San Joaquin* (2008) 42 Cal.4th 1121, 1126.) A dangerous condition is one creating a substantial risk of injury when the property upon which it is found is used with due care in a manner in which it can be reasonably foreseen that it will be used. (*Stathoulis v. City of Montebello* (2008) 164 Cal.App.4th 559, 565.)

The 1AC alleges that “a dangerous condition of public property existed in that a fallen and/or cut down tree obstructed Plaintiff’s lane of travel in a poorly lit and/or illuminated area” along I-780. (1AC at p. 7.) It states that there was a tree on the road and that constituted a dangerous condition, which fits common sense. The 1AC does not solely allege dangerously insufficient lighting. The lighting was a factor contributing to the allegedly exceptionally high level of danger present due to the tree; the allegations of a tree in the road alone would suffice to state a dangerous condition of public property, as a tree in the road creates a substantial risk of injury when the road is used with due care in a reasonably foreseeable manner. The 1AC alleges that CALTRANS had actual or constructive notice of the tree sufficiently in advance to have protected against it by removing it or erecting barriers or warnings. (*Ibid.*) The 1AC sufficiently alleges a dangerous condition of public property.

Government Code 815.2. The 1AC states that its cause of action for dangerous condition of public property is “brought pursuant to Government Code Section [sic] 835 and 815.2.” (1AC at p. 7.) Government Code section 815.2 is not applicable to a claim for dangerous condition of public property. Government Code section 835 sets out the

exclusive conditions under which a public entity is liable for injuries caused by a dangerous condition of public property. (*Brown v. Poway Unified School District* (1993) 4 Cal.4th 820, 829; *Longfellow v. County of San Luis Obispo* (1983) 144 Cal.App.4th 379, 383.) The errant reference to an inapplicable statute in the 1AC is a trivial defect in the pleading. The 1AC states a proper cause of action against CALTRANS via section 835. The superfluous reference to the other statute is not grounds for demurrer.

Conclusion. CALTRANS's demurrer is overruled.

SHONNA LEIGH RIVES, SUI JURIS vs. FPI MANAGEMENT; ET AL.
Case No. CU25-07160

Plaintiff's Motion to Vacate and/or Modify Order Dismissing First Amended Complaint

TENTATIVE RULING

THE PARTIES ARE TO APPEAR.

At the hearing, the Court's tentative ruling is as follows: Plaintiff's motion to vacate and/or modify the order dismissing Plaintiff's first amended complaint, filed on March 26, 2026, is granted. The Court finds that Plaintiff acted under mistake and/or excusable neglect within the meaning of CCP Section 473(b).

The second amended complaint filed on March 24, 2026 is deemed filed. Defendant shall file an Answer or other responsive pleading within 30 days of today's hearing date.

MERCED DIP LENDER LLC vs. DAVID C. SOWELS
Case No. CU26-03381

Defendant's Motion to Vacate Sister-State Judgment

TENTATIVE RULING

THE PARTIES ARE TO APPEAR.

At the hearing, the Court's tentative ruling is as follows:

Defendant's motion to set aside and vacate the sister state judgment is denied. Defendant has failed to present any legal analysis or evidentiary basis to warrant relief.

MERCED DIP LENDER LLC vs. DAVID C. SOWELS
Case No. CU26-03381

Motion to Appear Pro Hac Vice

TENTATIVE RULING

The unopposed motion for Jeremiah C. Hollembeak, Esq. to appear pro hac vice is GRANTED.

CLAUDIA GONZALEZ v. MEYER CORPORATION U.S. and DIEGO PEREZ
Case No. FCS058246

Plaintiff's Motion to Conduct Discovery of MEYER's Financial Condition

TENTATIVE RULING

Plaintiff CLAUDIA GONZALEZ moves for leave to conduct discovery of Defendant MEYER CORPORATION U.S.'s ("MEYER") financial condition. Plaintiff relevantly alleges causes of action against MEYER for discrimination and harassment in violation of the Fair Employment and Housing Act, based on alleged derogatory comments and conduct from Defendant DIEGO PEREZ ("PEREZ"), Plaintiff's supervisor at MEYER.

Legal Standard. Code of Civil Procedure section 3295 states that a plaintiff may not conduct pretrial discovery of a defendant's financial condition for purposes of assessing punitive damages unless that plaintiff first obtains an order permitting discovery from the court. Such an order may only be granted upon motion "supported by appropriate affidavits" such that the court determines that the plaintiff has a substantial probability of prevailing on his claim for related damages.

To prevail on such a motion a plaintiff must demonstrate a substantial probability that he will prevail on his claim for punitive damages at trial; this requires the court to weight the evidence submitted in favor of and in opposition to the motion and find that it is very likely – not simply likely, but very likely – that the plaintiff will prevail on the punitive damages claim at trial. (*Jabro v. Superior Court* (2002) 95 Cal.App.4th 754, 758.) In turn, Civil Code section 3294, subdivision (a) provides that punitive damages are only available in actions not arising from breach of contract if is "proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice." "Malice" means conduct intended to cause injury or despicable conduct carried on with a willful and conscious disregard of the rights or safety of others; "oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights; and "fraud" means intentional misrepresentation, deceit, or concealment of a material fact with intention to cause injury. (Civ. Code § 3294, subd. (c).) "Despicable" conduct refers to that which is "base, vile, or

contemptible” and is something more than simple willful and conscious disregard for others. (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.)

Objections to Evidence. MEYER objects to several pieces of evidence in the Declaration of Chambord Benton-Hayes in Support of Motion. The Court only rules on those objections that it deems material.

MEYER’s #1-2, 17. Plaintiff cannot use her own interrogatory responses as evidence. (Code Civ. Proc., § 2030.410.) These objections are sustained.

MEYER’s #13, 29-32. What Plaintiff told Ms. Luciano is hearsay. (While hearsay exceptions might come into play later at trial, there is no hearsay exception at this time.) These objections are sustained.

MEYER’s #14, 42, 44, 46. What Plaintiff told Ms. Calisa is hearsay. (While hearsay exceptions might come into play later at trial, there is no hearsay exception at this time.) These objections are sustained.

Likelihood of Proving Punitive Damages Against MEYER. Where the above objections have been sustained, Plaintiff has presented insufficient admissible evidence to show that Defendant Perez made discriminatory or harassing statements as alleged.

As such, Plaintiff does not display a substantial probability of proving punitive damages against MEYER based upon the admissible evidence submitted with this motion.

Conclusion. Plaintiff’s motion is denied.

Department 7 is inviting you to a scheduled ZoomGov meeting.
Join ZoomGov Meeting

<https://solano-courts-ca-gov.zoomgov.com/j/1611554664?pwd=T3U4QlBGWWNWaGlhXJTcGxIVHRXZz09>

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